gress and the President through bicameralism and presentment. See Art. I, § 7, cl. 2. So, if "agency action qualifies as 'supreme Law,' " then it arguably "violates the Constitution's separation of powers." D. Rubenstein, The Paradox of Administrative Preemption, 38 Harv. J. L. & Pub. Pol'y 267, 334 (2015). On the other hand, if agencies cannot make "Law" their actions seem to fall "beyond the Supremacy Clause's purview" and cannot preempt state law. *Ibid.*

Of course, to the extent that federal agency action is treated with the force of law, regulated parties should likely not be compelled by state law to take contradictory actions. See *Wyeth*, 555 U. S., at 588 (opinion of THOMAS, J.) (agreeing that valid federal regulations can preempt conflicting state laws). But, the difficulty illustrates the consequences of the modern administrative state and our mistaken separation-of-powers jurisprudence. If agencies were not exercising core legislative power, especially through schemes that exceed even Congress's powers, there would be far less occasion to address conflicts between agency actions and state law that the Constitution's Framers would not have envisioned.

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JUSTICE JACKSON, with whom JUSTICE GORSUCH joins, dissenting.

In 2019, John Durnell brought a state-law failure-to-warn claim against Monsanto, an agrochemical company that manufactures and distributes a widely used pesticide called Roundup. Durnell claimed that he had developed non-Hodgkin's lymphoma, a type of blood cancer, due to his two-decade-long use of Roundup. Roundup's label did not (and still does not) include any warning about the risk of developing cancer. Durnell thus sued Monsanto in Missouri state court, alleging that Roundup's label lacked a necessary warning. After a 9-day trial, the jury agreed and awarded Durnell $1.25 million in compensatory damages.

Monsanto argues that 7 U. S. C. § 136v(b)—a provision of the Federal Insecticide, Fungicide, and Rodenticide Act

(FIFRA)—expressly preempts Durnell's failure-to-warn claim. See *ibid.* (providing that state labeling "requirements" that are "in addition to or different from those required under" FIFRA are preempted). Today, the Court agrees. The majority emphasizes that the Environmental Protection Agency (EPA) has consistently registered Roundup—a precondition to Monsanto's ability to sell that product—and has thus approved Roundup's label without a cancer warning. *Ante*, at 380–381. According to the majority, the EPA's registration decision and approval of Roundup's label created a labeling "requirement" under FIFRA: namely, that Monsanto sell Roundup with the label exactly as the EPA approved it. *Ante*, at 383–385. Thus, the majority concludes, Durnell's lawsuit added a labeling requirement that federal law did not require, triggering preemption per § 136v(b). *Ante*, at 385.

In so holding, the Court departs from the near-unanimous view of the many state and federal courts that have rejected this preemption argument.[1] In my view, the majority should have joined that chorus. Durnell's failure-to-warn claim is not "in addition to or different from" FIFRA's mandates; it is *equivalent* to FIFRA's key labeling requirement—the misbranding prohibition. And Durnell's claim does not conflict with any other FIFRA "requirement" for § 136v(b) purposes because the EPA's registration of a pesticide and approval of its label does not create a labeling requirement under FIFRA.

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[1] See, *e. g.*, 707 S. W. 3d 828, 835 (Mo. App. 2025) (case below); *Carson* v. *Monsanto Co.*, 92 F. 4th 980, 986 (CA11 2024); *Hardeman* v. *Monsanto Co.*, 997 F. 3d 941, 954 (CA9 2021); *Anderson* v. *Monsanto Co.*, 719 S. W. 3d 755, 798 (Mo. App. 2025); *Caranci* v. *Monsanto Co.*, 338 A. 3d 151, 170 (Pa. Super. 2025); *Dennis* v. *Monsanto Co.*, 116 Cal. App. 5th 322, 342, 339 Cal. Rptr. 175, 188 (2025); *Johnson* v. *Monsanto Co.*, 333 Ore. App. 678, 699–701, 554 P. 3d 290, 306–308 (2024); *Pilliod* v. *Monsanto Co.*, 67 Cal. App. 5th 591, 613, 282 Cal. Rptr. 3d 679, 698 (2021); but see *Schaffner* v. *Monsanto Corp.*, 113 F. 4th 364, 399 (CA3 2024).

So, I respectfully dissent. In accepting Monsanto's argument and holding that Durnell's failure-to-warn claim is preempted, the Court misunderstands FIFRA's requirements, misinterprets the scope of FIFRA's preemption, and ultimately leaves Durnell without a remedy for the significant harms he has suffered.

I

Congress has the power to preempt state law. It can do so expressly through the text of a federal statute or impliedly. Regardless of the method, federal preemption is typically premised on a conflict between federal and state law. See *Murphy* v. *National Collegiate Athletic Assn.*, 584 U. S. 453, 477 (2018). Under the Constitution's Supremacy Clause, Art. VI, cl. 2, "federal law takes precedence" over conflicting state law "and [thus] the state law is preempted." *Murphy*, 584 U. S., at 477.

Importantly, however, there is not always a complete conflict between a federal statute and state law, even if they address the same subject matter. That is, federal law does not necessarily box out *all* state regulation on a particular issue. Congress can and does enact statutory provisions that specifically define the preemptive scope of the federal law. See, *e. g.*, *Montgomery* v. *Caribe Transport II, LLC*, 608 U. S. 219, 223–224 (2026) (describing preemption provision that carves out state safety regulations); cf. *Cipollone* v. *Liggett Group, Inc.*, 505 U. S. 504, 517 (1992) ("Congress' enactment of a provision defining the pre-emptive reach of a statute implies that matters beyond that reach are not preempted"). And federal preemption provisions often permit *parallel* state laws—*i. e.*, those that "merely duplicate federal requirements." *Bates* v. *Dow Agrosciences LLC*, 544 U. S. 431, 442, 453 (2005). When allowing state-law versions of a federal mandate, Congress displaces state law only "to the extent of th[e] difference" from federal law. *Id.*, at 453. Thus, state law can still "provide a traditional damages remedy for violations of common-law duties when those duties

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parallel federal requirements." *Medtronic, Inc.* v. *Lohr*, 518 U. S. 470, 495 (1996).

FIFRA fits this mold. It is a federal statute that regulates the sale and use of pesticides, and among other things, requires that pesticides bear detailed labels providing consumers with information about how to use them and what risks they pose. FIFRA expressly limits States' authority to regulate pesticide labels, but it does not eliminate that authority. Instead, FIFRA preempts only those state "requirements for labeling or packaging in addition to or different from" the requirements under FIFRA. § 136v(b).[2] This means that state labeling requirements "equivalent to" FIFRA's requirements are not preempted. *Bates*, 544 U. S., at 447. In other words, FIFRA's preemption clause does not block state-law claims where the violation of state law is also a violation of FIFRA. *Id.*, at 454.

II

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To analyze the reach of FIFRA's preemption provision, I begin, per usual, with the statute's text. See *Chamber of Commerce of United States of America* v. *Whiting*, 563 U. S. 582, 594 (2011). To repeat: § 136v(b) provides that a "State shall not impose or continue in effect any requirements for labeling or packaging in addition to or different from those required under" FIFRA. To distinguish the state laws this provision preempts from those that can continue unabated, one must, first, identify the "requirements" under FIFRA, and, second, determine whether the state law imposes requirements that are "in addition to or different from" (as opposed to the equivalent of) those FIFRA requirements.

Here, the majority falters on both tasks. FIFRA's labeling requirements are established by statute and regulation, and those requirements are no different than the labeling duties imposed by Missouri via its failure-to-warn tort. The

[2] As the majority points out, many federal statutes contain similarly limited express preemption clauses. *Ante*, at 387 (collecting statutes).

state-law claim at issue reflects a parallel requirement that is fully consistent with FIFRA's primary labeling duty—its misbranding prohibition—and makes no additional asks of those who are subject to it.

A

"A requirement is a rule of law that must be obeyed." *Bates*, 544 U. S., at 445. In interpretating FIFRA, this Court has previously held that the term "requirements" includes "positive enactments, such as statutes and regulations," as well as "common-law duties." *Id.*, at 443. Thus, the "requirements" under FIFRA that can preempt state labeling requirements are those directives "set out in FIFRA and its implementing regulations." *Id.*, at 452.

FIFRA's principal labeling requirement is its prohibition on selling or distributing "misbranded" pesticides. § 136j(a)(1)(E). The statutory definition of "misbranded" is extensive, establishing many detailed supplementary labeling requirements. See § 136(q). For example, a pesticide that contains a highly toxic substance but does not have the "skull and crossbones" and the word "'poison'" on its label is misbranded. § 136(q)(2)(D). So too is a pesticide that does not bear an ingredient statement. § 136(q)(2)(A). And so is a pesticide that has "false or misleading" statements on its label. § 136(q)(1)(A).

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Another type of prohibited misbranding is relevant to today's dispute: A pesticide is misbranded if "the label does not contain a warning or caution statement which may be necessary and . . . is adequate to protect health and the environment." § 136(q)(1)(G). Adequate warnings must, among other things, protect against "any unreasonable risk to [humans] or the environment, taking into account the economic, social, and environmental costs and benefits of the use of any pesticide." § 136(bb); see § 136(x). Consequently—and this is important to remember—one requirement under FIFRA

is that a pesticide's label must contain "adequate" and "necessary" warnings. § 136(q)(1)(G).

FIFRA does not specify the particular warnings that are adequate and necessary (and thus comply with the misbranding prohibition). But the EPA has started to fill in that gap by promulgating regulations to "give content to" FIFRA's misbranding prohibition in certain contexts. *Bates*, 544 U. S., at 453. For the adequate-and-necessary-warnings requirement, EPA regulations require labels to contain specific precautionary statements in a certain circumstance: where the pesticide may cause particularly acute hazards. See 40 CFR §§ 156.60–156.70 (2025); see also § 156.10(a)(1)(vii). The regulations dictate that, for certain categories of toxins, a pesticide manufacturer must add to the product label different "signal word[s]": "'DANGER,'" "'WARNING,'" and "'CAUTION.'" § 156.64.

To date, the EPA has not promulgated any other regulations pertaining to FIFRA's adequate-and-necessary-warning requirement.[3] Critically for present purposes, the EPA's regulations do not set specific requirements for label warnings relating to *chronic* risks, like cancer.[4] FIFRA's

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[3] The EPA *has* promulgated regulations that give content to a different aspect of FIFRA's misbranding prohibition: the false-or-misleading-statement element. Those regulations provide a nonexhaustive list of statements that qualify as false or misleading and therefore would render the pesticide misbranded. See 40 CFR § 156.10(a)(5) (2025) (prohibiting, for example, "[c]laims as to the safety of the pesticide" such as "'safe'" or "'nontoxic to humans and pets'").

[4] The majority asserts that cancer warnings are a type of precautionary statement covered by the EPA's regulations, relying on its unsupported view of the "ordinary meaning of 'hazards' and 'precautionary statements.'" *Ante*, at 384–385, n. 5. That is mistaken. Whatever the ordinary meaning of the term (and whatever the United States' litigation-created interpretation), the "[p]recautionary statements" regulations are expressly directed at only acute hazards. § 156.70. The regulations require that, if the pesticide may pose "an *acute* hazard" to "humans or domestic animals," then the pesticide's label "must bear precautionary

misbranding prohibition establishes the broad requirement that a pesticide's label contain necessary and adequate warnings for any chronic risks, but neither the statute nor the EPA's regulations dictate more specific requirements for such warnings.

B

All this has implications for the meaning of FIFRA's preemption provision. The provision's language establishes that when FIFRA itself or the EPA's regulations require specific statements on a pesticide's label—such as the skull and crossbones or a particular "signal word"—a state law that requires additional or different statements is preempted. But, absent such federal-law requirements, a state-law duty that simply parallels FIFRA's misbranding prohibition is not preempted.

Suppose, for example, a State mandates that pesticides causing moderate skin irritation bear the word "WARNING." That state law would be preempted by FIFRA because the EPA's regulations require that the label for pesticides causing moderate skin irritation bear the signal word "CAUTION." 40 CFR §§ 156.62, 156.64(a)(3). The State's labeling requirement is different from (and indeed conflicts with) the EPA's regulations. By contrast, if a State seeks to hold a manufacturer liable under state law for failing to label a pesticide with the *same* warning words that federal regulations require, application of the state law would *not*

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statements describing the particular hazard." § 156.70(b) (emphasis added). The regulations then list the "typical hazard and precautionary statements": warnings that the pesticide is or may be "[f]atal" or "[h]armful" if swallowed or that it could cause eye or skin irritation. § 156.70(c). The risk of developing cancer is not listed as an "acute" hazard. Nor could it be; cancer is a long-term or chronic risk. While the EPA does, as part of its registration decision, evaluate the chronic risks a pesticide may pose, see *ante*, at 384–385, n. 5, the EPA has not promulgated regulations addressing when a cancer warning must be included on a label or what a cancer warning must say. The precautionary-statements regulations simply have nothing to do with cancer warnings.

be preempted under 7 U. S. C. § 136v(b). In that situation, the State is not requiring anything "in addition to or different from" FIFRA's requirements.

Consider another example. A State wants to ensure that the pesticides its residents use are properly labeled and contain all warnings necessary and adequate to protect against unreasonable risks to its residents and the environment. So it either enacts a statute that makes liable any pesticide manufacturer that fails to provide adequate and necessary warnings, or relies on the existing tort regime to accomplish this same result. In either case, the state-law scheme merely "duplicate[s]" FIFRA's adequate-andnecessary-warnings requirement—and is therefore not preempted. *Bates*, 544 U. S., at 442. Why not? Because the State is not requiring anything "in addition to or different from" what FIFRA's own misbranding prohibition requires.

With that background, it is easy to see that Durnell's failure-to-warn claim—which faults Monsanto for not including cancer warnings on the Roundup label—does not trigger preemption under FIFRA. Missouri's failure-to-warn tort punishes the sale of unreasonably dangerous products, like pesticides, without "adequate warning of the danger." *Moore* v. *Ford Motor Co.*, 332 S. W. 3d 749, 756 (Mo. 2011) (en banc). As the Missouri Court of Appeals explained, Durnell's claim has the same "practical effect" as FIFRA's misbranding prohibition: "[B]oth require a pesticide manufacturer to adequately warn users of the potential dangers of using its product." 707 S. W. 3d 828, 833 (2025) (internal quotation marks omitted). Durnell's claim does not impose any labeling requirement that is "in addition to or different from" what FIFRA itself requires, § 136v(b); instead, the standards prescribed by federal and state law are equivalent.[5]

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[5] To be clear, Missouri's failure-to-warn claim is equivalent to FIFRA's misbranding prohibition at least as presented to us. Monsanto argues that Missouri's tort is not equivalent because it permits, but does not re-

Why might a federal law that expressly seeks "[u]niformity" in labeling, § 136v(b), leave room for parallel state tort suits like Durnell's? As we have previously explained, "FIFRA contemplates that pesticide labels will evolve over time." *Bates*, 544 U. S., at 451. To that end, "tort suits can serve as a catalyst"—encouraging pesticide manufacturers to "keep abreast of all possible injuries stemming from use of their product" and to maintain labels with the necessary and adequate warnings. *Ibid.* (internal quotation marks omitted). Parallel state tort liability is an enforcement tool that can have a salutary information-forcing effect, and that,

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quire, a jury to conduct the cost-benefit analysis that FIFRA's adequate-and-necessary-warnings requirement appears to mandate. See *Rodriguez* v. *Suzuki Motor Corp.*, 996 S. W. 2d 47, 65 (Mo. 1999) (en banc) (leaving the decision of what it means to be "unreasonably dangerous" to the jury (internal quotation marks omitted)); 7 U. S. C. § 136(bb) (incorporating the "costs and benefits of the use of any pesticide" into the definition of "misbranded").

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But any potential difference does not doom Durnell's claim. Recall that preemption displaces state law only "to the extent of th[e] difference" between state and federal law. *Bates* v. *Dow Agrosciences LLC*, 544 U. S. 431, 453 (2005). Monsanto has not properly presented any argument that Durnell's claim *in fact* imposes a requirement that differs from FIFRA's misbranding prohibition. Monsanto did not seek a jury instruction at trial directing the jury to find for Durnell only if his evidence met the requirements for FIFRA's misbranding standard. See *id.*, at 454. Since it declined to present that argument to the jury, Monsanto cannot now complain that Durnell's claim is actually broader than the federal requirement. Nor does Monsanto argue before us that the evidence at trial was insufficient to support a jury verdict for a failure-to-warn claim that was equivalent to FIFRA's misbranding standard. Cf. *Boyle* v. *United Technologies Corp.*, 487 U. S. 500, 513 (1988) (holding that a plaintiff would not be entitled to a new trial, even after the Court of Appeals reformulated the relevant defense, "[i]f the evidence presented in the first trial [still] would not suffice . . . to support a jury verdict under the properly formulated defense"). Accordingly, we cannot address whether Durnell's failure-to-warn claim, in light of the evidence presented, is different than FIFRA's misbranding standard.

in turn, helps ensure the effectiveness of FIFRA's misbranding prohibition.

III

The majority does not view FIFRA's misbranding prohibition as the relevant federal "requirement" for preemption purposes. Instead, it ventures far beyond FIFRA and its regulations, purporting to identify the relevant labeling requirement in the EPA's approval of Roundup's label. *Ante*, at 383–385, 387–388. The argument goes like this: A manufacturer must register its pesticide with the EPA before selling or distributing it. § 136a(a). As part of the registration process, the EPA reviews and approves the pesticide's label, confirming that the label complies with FIFRA's requirements. § 136a(c)(5)(B). Furthermore, the EPA generally requires a manufacturer to get the agency's approval before changing its product's label. 40 CFR § 152.44.

As the majority sees it, the EPA's registration of a pesticide and approval of its label creates a federal requirement that the manufacturer use the label exactly as the EPA approved it. *Ante*, at 385. Here, the majority says, because the EPA approved Roundup's label without a cancer warning, state law cannot require Roundup's label to include one. *Ante*, at 385, 387–388.

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This theory has some intuitive appeal—federal approval should count for something, after all. But, in reality, the majority's view is unmoored from the statute's text and irreconcilable with our precedents.

A

1

Start with the text. In the same section of FIFRA that lays out the pesticide registration process, the statute contains a crucial caveat: "In no event shall registration of [a pesticide] be construed as a defense for the commission of any offense under" FIFRA, 7 U. S. C. § 136a(f)(2)—including

misbranding, § 136j(a)(1)(E). Rather, per the terms of the statute, registration is merely "prima facie evidence that the pesticide [and] its labeling . . . comply with the registration provisions of" FIFRA. § 136a(f)(2).

These two parts of § 136a(f)(2) work in tandem. Registration is prima facie evidence that the pesticide's label complies with FIFRA's requirements, meaning that the EPA's approval reflects the agency's best judgment that the label satisfies FIFRA. See § 136a(c)(5)(B). But prima facie evidence is not conclusive evidence. Thus, the statute clarifies that, in the face of a misbranding charge, the EPA's registration is not a defense. This means that the EPA's approval of a pesticide's label cannot conclusively establish that the pesticide is not misbranded. The statute, in other words, does not treat as infallible the EPA's judgment as to whether FIFRA's misbranding provision has been violated. For that reason, a pesticide may be "registered but nevertheless misbranded." *Bates*, 544 U. S., at 438.

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This, in turn, must mean that the EPA's (not infallible) approval of a pesticide's label does not establish a "rule of law that must be obeyed" when it comes to the pesticide's label. *Id.*, at 445. Because the EPA's registration decision is not conclusive of the label's compliance with the statute, that registration decision itself cannot carry the force of law, much less capture the universe of requirements with which a manufacturer must comply to prevent its product from being misbranded in violation of FIFRA. To conclude otherwise would turn the registration decision from "prima facie evidence" of compliance with FIFRA into conclusive proof of such compliance. It defies logic to treat the EPA's approval of a pesticide's label as creating a legal requirement under FIFRA when that approved label may not comply with the law.

The majority fails to grapple with any of this. Nor does it address the internal tension its theory produces. The majority says that the registration process creates a require-

ment because a pesticide manufacturer must use the label exactly as the EPA approved it, with no additions or changes. But the statutory misbranding prohibition might well require a different or additional warning on the label than what the EPA approved, since approval is merely prima facie evidence of compliance. The majority's theory thus cannot be squared with what FIFRA plainly requires. That is, notwithstanding the EPA's approval of its label, a manufacturer has "a continuing obligation to adhere to FIFRA's labeling requirements," including the misbranding prohibition. *Id.*, at 438.

In short, the EPA's approval of the label cannot set a "requirement" for § 136v(b) purposes. Instead, the requirements of FIFRA—the misbranding prohibition and the implementing regulations—dictate the contents of the label. This is so because § 136a(f)(2) makes clear that FIFRA's misbranding prohibition *continues to apply* to pesticides even after they have been registered. The upshot here is that, even though the EPA approved Roundup's label, that label could still lack a necessary warning.

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A real-world example illustrates the interplay between registration and misbranding. In 1999, the EPA approved a label for a Roundup product distributed by Monsanto that did not include any statements warning the user that the pesticide could leak.[6] But the EPA itself soon determined that the approved label did not meet the requirements of FIFRA because, "[w]hen used in accordance with its label directions," the pesticide could "leak or spray onto the user." *In re: The Monsanto Co.*, 2000 WL 1886918, *2 (EAB, Sept. 29, 2000). Accordingly, the EPA imposed civil penalties on Monsanto for "distributing or selling misbranded pesticides." *Ibid.*

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[6] See Roundup® L & G READY-TO-USE Fast Acting Formula Grass & Weed Killer, EPA Reg. No. 239–2638, pp. 11–12 (June 8, 1999), https://www3.epa.gov/pesticides/chem_search/ppls/071995-00008-19990608.pdf (archived at https://perma.cc/7EkZ-SPFW).

This example rebuts the majority's claim that a registered pesticide can be misbranded only if the label contains information that was not on the label that the EPA approved or omits information that was. *Ante*, at 390. Far from creating a new requirement under FIFRA, the EPA's approval of the label did *not* suffice to establish compliance with the statutory requirement that a pesticide not be misbranded, nor did it shield Monsanto from liability for violating the misbranding requirement.[7] And if a state-tort duty, akin to Durnell's failure-to-warn claim, had likewise required Monsanto to include a leak warning on the label, the State's requirement would have been identical to FIFRA's and therefore would not have been preempted—regardless of the fact that the EPA had previously approved the label without that warning.

The continuing force of FIFRA's misbranding prohibition, even after the EPA's registration of a pesticide, thus resolves today's preemption dispute. Since FIFRA's misbranding prohibition remains a requirement with which registered pesticides must comply, state-law duties that are equivalent to the misbranding prohibition add nothing new or different that would trigger preemption. If an additional warning is necessary to comply with FIFRA's misbranding prohibition,

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[7] For a similar example, see *In re: Ecolab Inc.*, 2009 WL 10729367 (EPA, June 22, 2009) (imposing civil penalties for misbranding on manufacturer whose three pesticides were ineffective against certain bacteria even though the EPA-approved labels stated that the pesticides were effective against those bacteria). See also A–33, EPA Reg. No. 42964–5, pp. 2, 4 (Aug. 24, 2004), https://www3.epa.gov/pesticides/chem_search/ppls/042964-00005-20040824.pdf (archived at https://perma.cc/2JPG-NXYA) (first label); A–33 Dry, EPA Reg. No. 42964–25, p. 3 (May 17, 2002), https://www3.epa.gov/pesticides/chem_search/ppls/042964-00025-20050517 (archived at https://perma.cc/T6LJ-ZUZB) (second label); Omega, EPA Reg. No. 42964–14, p. 2 (May 24, 2001), https://www3.epa.gov/pesticides/chem_search/ppls/042964-00014-20010524.pdf (archived at https://perma.cc/27XH-WMJZ) (third label).

then a state-law duty can require that warning, even if the EPA approved the label without it.

2

The majority tries valiantly to discount the relevance of § 136a(f)(2)—the provision clarifying that the EPA's registration decision is not conclusive of a pesticide manufacturer's compliance with FIFRA's misbranding prohibition. Its efforts fail.

The majority notes, for example, that § 136a(f)(2) is in the portion of the registration statute titled "[m]iscellaneous," and reasons that "it would be rather bizarre" for a miscellaneous provision to "upend" the statute's preemption provision. *Ante*, at 392. But the policy concern about exposing manufacturers to disruptive tort liability is no basis for ignoring the statute's text. And the argument is also substantively faulty. It assumes the conclusion that the EPA's approval of a label creates a "requirement" with preemptive force (hence the bizarreness of housing this consequential provision in a "miscellaneous" section of the statute). Under a correct interpretation of § 136a(f)(2), however, the EPA's approval of the label does not create requirements. So registration does not preempt different or additional state-law requirements, § 136a(f)(2) does not upend anything, and the "miscellaneous" placement of this provision makes sense.

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The majority also tries to cast doubt on § 136a(f)(2)'s relevance to the preemption provision. In particular, the majority argues that § 136a(f)(2) does not apply to state tort lawsuits as a general matter, and that it would not apply here because Monsanto did not invoke the fact of registration as a defense to Durnell's claim. *Ante*, at 390, 392. But this framing misses the point. Section 136a(f)(2)'s relevance to the preemption question is not whether Monsanto intends to, or can, invoke registration as a defense to Durnell's failure-to-warn suit. Instead, § 136a(f)(2) clarifies that a "no mis-

branding" conclusion cannot be based on the fact of registration alone, thus demonstrating that registration itself does not create a labeling requirement under FIFRA—in any context.

In addition to its attempt to downplay § 136a(f)(2), the majority also insists that the EPA's registration of a pesticide must create a labeling requirement because the manufacturer cannot change its pesticide's label without the EPA's approval, on pain of civil or criminal penalties. *Ante*, at 383–384, 388–389, 391. But the majority's analysis—which erroneously treats the EPA-approved label as a requirement under FIFRA—misstates FIFRA and the EPA's implementing regulations, and it also misunderstands the nature of FIFRA's express preemption clause.

First of all, it is wrong to say that FIFRA establishes that a manufacturer can face civil or criminal penalties solely for using a label that differs from what the EPA approved. The closest FIFRA comes to this is the provision that makes it unlawful for any person to "alter . . . any labeling required under" FIFRA. § 136j(a)(2)(A). Notably, this provision does not say that it is unlawful to alter the label that *the EPA* approved. Instead, it protects only the "labeling required under" FIFRA. And given § 136a(f)(2), we know that the EPA-approved label is not coextensive with the "labeling required under" FIFRA because FIFRA's ongoing misbranding prohibition could require that the EPA-approved label be amended.

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Another variation of this argument is the majority's contention that it is a violation of FIFRA's misbranding provision "if a manufacturer sells its pesticide with a different label than the one [the] EPA approved." *Ante*, at 378. The majority offers no support for this assertion—and there is none. The statutory definition of misbranding does not say that a pesticide sold with a label different from the EPA-approved label is necessarily misbranded. See generally § 136(q).

Second, the fact that a pesticide manufacturer must seek the EPA's approval for most labeling changes does not change the express preemption calculus. Whatever the manufacturer must do procedurally to get its product approved for marketing, FIFRA requires the manufacturer not to sell a misbranded pesticide. The majority implicitly acknowledges this when it notes that the EPA can require changes to a pesticide's label in light of new information or analysis. *Ante*, at 384. The agency mandates such changes to ensure continued compliance with FIFRA's requirements, including the misbranding prohibition. See § 136d(b) (providing that the EPA can cancel a pesticide's registration or change its classification "[i]f it appears to the Administrator that a pesticide or its labeling . . . does not comply with" FIFRA); § 136d(d) (authorizing the EPA Administrator to "requir[e] modification of the labeling"). So FIFRA's misbranding prohibition continues to apply to registered pesticides. And state-law requirements that parallel FIFRA's misbranding prohibition add nothing new. Therefore, such state-law requirements can likewise apply to registered pesticides.

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At the end of the day, then, the majority's theory of express preemption rests on a misinterpretation of FIFRA. The EPA's approval of a pesticide's label does not create a labeling requirement under FIFRA. Instead, FIFRA's key labeling requirement—the statutory prohibition on misbranding—continues to apply to registered pesticides even though the EPA has approved their labels. State-law claims that parallel the misbranding prohibition are not preempted, even if the claim requires a warning that was absent from the EPA-approved label. The majority thinks it "implausibl[e]" that the "EPA's registration and labeling determinations do not have preemptive force." *Ante*, at 388. But, at bottom, the majority's quibble is with the text of FIFRA's misbranding requirement and preemption provision, not with Durnell's claim.

B

Perhaps recognizing all this, Monsanto embraces a more extreme position: that a registered pesticide can never be misbranded. Tr. of Oral Arg. 10–11. That argument is easily disposed of because it cannot be squared with our decision in *Bates*, 544 U. S. 431, which recognized that a pesticide can be "registered but nevertheless misbranded," *id.*, at 438. Indeed, *Bates*—the only prior case in which we interpreted FIFRA's preemption provision—not only requires flat rejection of this view; it also confirms that the majority's interpretation of § 136v(b) is wrong.

The plaintiffs in *Bates* brought state tort claims against Dow Agrosciences for failing to warn them that the use of its pesticide in a particular type of soil would stunt crop growth. *Id.*, at 435. We held that States could impose label-based requirements that were equivalent to FIFRA's misbranding prohibition. *Id.*, at 452–453. And we remanded for the lower courts to decide in the first instance whether the particular failure-to-warn claim at issue in *Bates* imposed a requirement equivalent to FIFRA's misbranding prohibition. *Id.*, at 453–454.

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That disposition is critical. Had *Bates* accepted the theory the majority adopts today, there would have been no need to remand the case. That is, if the EPA's approval of a label preempted States from requiring any different or additional warnings, then a failure-to-warn claim would be impossible. Our remand in *Bates* thus necessarily rejected the theory that the EPA's approval of the label creates a labeling requirement that can preempt a state failure-to-warn claim.

The majority tries unsuccessfully to rewrite *Bates* to support its view. It focuses principally on an example *Bates* gave of the type of EPA regulation that could preempt a failure-to-warn claim: the precautionary-statements regulations that require a "CAUTION" designation or a "DANGER" designation depending on the pesticide's toxicity. *Ante*, at 385 (citing *Bates*, 544 U. S., at 453). The EPA's

registration determination, the majority says, is "just like" those EPA regulations. *Ante,* at 385–386.

But the majority provides no justification for this comparison. For good reason: It is only the EPA's duly promulgated regulations that can prescribe the content of a pesticide's label, not the individualized registration decision. Indeed, *Bates* made clear that the EPA's registration decision and the regulation providing for certain designations are *not* alike. *Bates* explained that the relevant federal requirements could be found in FIFRA's misbranding prohibition and "any relevant EPA regulations that give content" to the misbranding standards. 544 U. S., at 453. *Bates* also noted that "there appear to be relatively few regulations that refine or elaborate upon FIFRA's broadly phrased misbranding standards." *Ibid.*, n. 28. Thus, *Bates* gave no suggestion that the EPA's registration of a particular pesticide (and corresponding approval of its label) also created requirements under FIFRA.

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Nor could it. Because registration of a pesticide is not conclusive of FIFRA compliance, the registration decision cannot give content to FIFRA's misbranding standard. Instead, *Bates*'s reference to the EPA regulations means just that—the regulations that the EPA promulgated pursuant to its statutory authority. See § 136w(a).

The majority also points out that the *Bates* plaintiffs' failure-to-warn claim concerned a pesticide's lack of efficacy, while Durnell's claim here relates to the pesticide's safety. *Ante,* at 386; see also Brief for Petitioner 31–34. That matters to *Bates*'s outcome, the majority says, because the EPA had not reviewed the pesticide's efficacy as part of the registration process, so the EPA-approved label would of course not preempt state-required statements related to efficacy. See § 136a(c)(5).

The problem with this argument is that it is irrelevant to our actual holding in *Bates*. Our decision did not rely on the fact that the EPA had waived review of the pesticide's

efficacy in its registration determination. Indeed, outside of our discussion of the case's factual background, we mentioned the agency's decision to waive efficacy review only once: when explaining why it was particularly important to allow tort litigation in those circumstances. 544 U. S., at 450. But this was in the context of discussing an alternative ground for our holding, namely, applying a presumption against preemption. *Id.*, at 449–450. It was not support for our primary holding, grounded in the text of the statute, that FIFRA does not preempt state tort claims that parallel its requirements.[8]

Instead of relying on our precedent about FIFRA, the majority points to our decision in *Riegel* v. *Medtronic, Inc.*, 552 U. S. 312 (2008). See *ante*, at 386–387. *Riegel* involved an entirely separate statute: the Medical Device Amendments of 1976 (MDA). Similar to FIFRA, the MDA established a premarket registration scheme for medical devices that included review and approval of the devices' labeling by the Food and Drug Administration (FDA). 21 U. S. C. § 360e(d)(1)(A). The MDA also has an express preemption provision similar to FIFRA's. Specifically, the MDA preempts state requirements "with respect to a device intended for human use" that are "different from, or in addition to, any requirement applicable under [the MDA] to the device." § 360k(a). We held in *Riegel* that "[p]remarket approval . . . imposes 'requirements' " specific to medical devices under the MDA. 552 U. S., at 322–323. So, the majority says, if premarket approval under the MDA creates labeling require-

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[8] Confirming the irrelevance of the EPA's waiver of efficacy review to our holding in *Bates*, we granted, vacated, and remanded—in light of *Bates*—a case holding that FIFRA preempted a *safety*-based failure-to-warn claim. *Oken* v. *Monsanto Co.*, 544 U. S. 1012 (2005); see *Oken* v. *Monsanto Co.*, 371 F. 3d 1312, 1314–1315 (CA11 2004) (*per curiam*). Had *Bates* concluded that the EPA's approval of a label did not preempt a failure-to-warn claim only because the EPA did not review the label's statements related to efficacy, vacating and remanding a safety-based case would have been unnecessary.

ments, then the EPA's registration and approval of pesticide labels under FIFRA does too. *Ante*, at 387.

But in treating *Riegel* as dispositive, the majority ignores a key difference between the MDA and FIFRA: The MDA has nothing analogous to 7 U. S. C. § 136a(f)(2). This matters because, again, § 136a(f)(2) establishes that the EPA's approval of a pesticide's label is not conclusive of the label's compliance with FIFRA and therefore cannot establish a requirement under FIFRA. Because the MDA lacks an analogous provision, it might well be that the FDA's approval of a medical device's label *does* create labeling requirements under the MDA.[9]

There is another reason that the right outcome in today's case differs from *Riegel*: *Riegel* did not involve "parallel claims." 552 U. S., at 330. The litigation in *Riegel* proceeded on the assumption that the medical device "violated state tort law notwithstanding compliance with the relevant federal requirements." *Ibid.* So this Court had no occasion to consider whether there was an applicable federal requirement, apart from the FDA's premarket approval process, that might be equivalent to the plaintiffs' tort claim. Here, by contrast, it is precisely because FIFRA's misbranding prohibition parallels Missouri's failure-to-warn claim that Durnell's claim is not preempted.

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Thus, it is *Bates*, not *Riegel*, that is dispositive here. Contra, *ante*, at 387. *Bates* confirms what FIFRA's text makes

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[9] The majority tries to wave away the MDA's lack of a provision analogous to § 136a(f)(2), arguing that, in any event, the FDA could withdraw premarket approval from a medical device that it had previously approved. *Ante*, at 393, n. 9. But the statutory caveat in § 136a(f)(2) is broader than the FDA's withdrawal authority in the MDA. Specifically, § 136a(f)(2) makes clear that registration does not preclude a pesticide from being misbranded—regardless of *who* makes the misbranding determination. By contrast, the MDA gives authority *only* to the FDA to withdraw premarket approval from a medical device if it determines that device is misbranded. 21 U. S. C. § 360e(e)(1)(F); see § 352(a).

clear: The EPA's approval of a label does not create a requirement under FIFRA.

IV

Having rejected Monsanto's express preemption argument, I conclude by addressing its alternative contention that Durnell's failure-to-warn claim is impliedly preempted. Specifically, Monsanto argues that it is impossible to comply with both the labeling requirements of Missouri law and the labeling requirements of FIFRA. See *Mutual Pharmaceutical Co.* v. *Bartlett*, 570 U. S. 472, 480 (2013).

Monsanto is wrong. It can easily comply with both federal and state law by stopping sales of Roundup. Under FIFRA, it is unlawful to sell a misbranded pesticide. § 136j(a)(1)(E). Under Missouri failure-to-warn law, manufacturers have a duty not to sell products made unreasonably dangerous by inadequate warnings. See *Racer* v. *Utterman*, 629 S. W. 2d 387, 395 (Mo. App. 1981). Far from being incompatible, both federal and state law *require* Monsanto to stop selling its pesticide if the label lacks adequate warnings.

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To be sure, our decision in *Bartlett* largely rejected a "stop-selling rationale" as "incompatible with our preemption jurisprudence." 570 U. S., at 488 (internal quotation marks omitted). But we also expressly left open the possibility that a manufacturer could avoid state and federal liability if the state claim "parallel[ed] the federal misbranding statute" at issue in that case. *Id.*, at 487, n. 4. This was because the relevant misbranding statute could require the manufacturer to pull the product from the market. *Ibid.* As support for this conclusion, we cited *Bates*, implying that we were not deciding whether a "stop-selling rationale" would (or would not) work to avoid implied preemption where the federal and state standards are equivalent and impose a duty not to sell misbranded products. This case thus falls squarely into the exception seemingly left open by *Bartlett*.

In any event, Monsanto's implied preemption argument fails on its own terms. The premise of Monsanto's contention is that Missouri law requires it to add a cancer warning, but FIFRA prohibits Monsanto from adding such a warning without approval from the EPA. Monsanto says it thus cannot do under federal law what state law requires.

But Monsanto overstates the difficulty of adding a cancer warning to Roundup's label. In *PLIVA, Inc.* v. *Mensing*, 564 U. S. 604 (2011), we explained how true impossibility works in the labeling context. There, a plaintiff alleged that a generic drug manufacturer had failed to include adequate warnings on its label. *Id.*, at 610. Federal law, however, required the label on a generic drug to match exactly the label on the brand-name drug. *Id.*, at 612–613. So, for a generic manufacturer to add a warning, it would have to ask the FDA to ask the brand-name manufacturer to add the warning. *Id.*, at 616. We explained that the state-law claim was preempted because it was impossible for the generic manufacturer to add the required warning without the "special permission and assistance" of the Government. *Id.*, at 623–624.

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Here, by contrast, Monsanto does not need the EPA's "special permission and assistance" to add a cancer warning. Like all pesticide manufacturers, Monsanto bears primary responsibility for maintaining the warnings on its label. See *Bates*, 544 U. S., at 438 ("[M]anufacturers have a continuing obligation to adhere to FIFRA's labeling requirements"). To the extent it needs the EPA's approval at all (more on that below), all it must do is submit an application for an amended registration that reflects the labeling change, which the EPA "shall" approve as long as the change does not violate FIFRA. § 136a(f)(1); see 40 CFR § 152.44(a). This is a far cry from the contingent chain of approvals a generic drug manufacturer was required to secure in *PLIVA*.

But there is no need for Monsanto to undertake this amended-registration path here. Monsanto can add a cancer

warning without the EPA's approval. The EPA's regulations permit pesticide manufacturers to make "minor modifications" to their labels without getting prior approval from the agency. § 152.46. Instead, the manufacturer need only notify the EPA of the change (and in some cases, notification is not even required). *Ibid.*

The majority claims that adding a cancer warning would not be a "minor" modification. *Ante*, at 384–385, n. 5. For support, it relies on the regulation that requires the EPA's approval for "'statements pertaining to the hazards of the product.'" *Ibid.* (quoting § 156.70(c)). But that regulation does not apply to chronic conditions like cancer. See *supra*, at 403–404, and n. 4. The prior-approval requirement for hazard and precautionary statements says nothing about whether cancer warnings also need prior approval from the EPA.

While a cancer warning may not seem like a minor modification, facts on the ground belie that appearance. On at least six occasions, the EPA has permitted manufacturers to add state-specific cancer warnings as minor modifications without the agency's prior approval.[10] Among the manufac-

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[10] See, *e. g.*, Letter from K. Montague, EPA, Office of Pesticide Programs, to L. Zahigian, Lawn and Garden Products, Inc. (Sept. 14, 2017), https://www3.epa.gov/pesticides/chem_search/ppls/054705-00006-20170914.pdf (archived at https://perma.cc/9Y47-RGPK); Letter from K. Davis, EPA, Office of Pesticide Programs, to L. Radevski, Chase Products Co. (June 21, 2017), https://www3.epa.gov/pesticides/chem_search/ppls/000498-000156-20170621.pdf (archived at https://perma.cc/46KX-U46D); Letter from M. Walsh, EPA, Office of Pesticide Programs, to E. Smith, PBI/Gordon Corporation (May 30, 2017), https://www3.epa.gov/pesticides/chem_search/ppls/033955-000394-20170530.pdf (archived at https://perma.cc/6469-9D7S); Letter from M. Walsh, EPA, Office of Pesticide Programs, to C. Zemanek, The Scotts Company LLC (Mar. 1, 2017), https://www3.epa.gov/pesticides/chem_search/ppls/000239-00739-20170301.pdf (archived at https://perma.cc/P9SH-74HV); Letter from J. Urbanski, EPA, Office of Pesticide Programs, to V. Lawless, Wellmark International (Apr. 21, 2015), https://www3.epa.gov/pesticides/chem_search/ppls/002724-00702-20150421.pdf (archived at https://perma.cc/GJR9-FRQ2); Letter from J. Gaines, EPA, Office of Pesticide Programs, to L. Hodges, Bayer CropScience (Dec.

turers that have previously added a cancer warning without prior approval is a subsidiary of Monsanto's parent company, Bayer.

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The majority reads into FIFRA a labeling requirement that does not exist, and it reads out of FIFRA the statute's ongoing prohibition on misbranding. This interpretation cannot be squared with the text of FIFRA or our precedents. Ultimately, the effect of the majority's interpretation is both remarkable and regrettable, for it unjustifiably closes the courthouse doors to state tort plaintiffs like Durnell.

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17, 2012), https://www3.epa.gov/pesticides/chem_search/ppls/000264-00343-20131217.pdf (archived at https://perma.cc/P4RU-6X2W).